

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK
KEENAN LEWIS

RECEIVED
SDNY PRO SE OFFICE

2017 JAN -6 PM 1:28

S.D. OF N.Y.

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

**AMENDED
COMPLAINT**

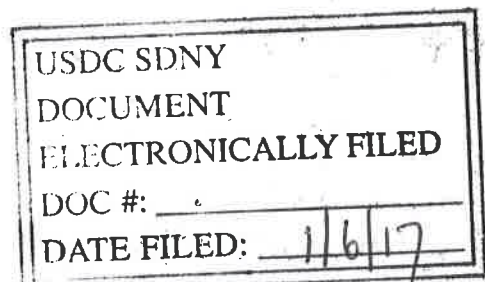
under the Civil Rights Act,
42 U.S.C. § 1983

THE CITY OF NEW YORK, N.Y.C. POLICE
OFFICER ANDREW NASH, SHIELD # 11510, IN
HIS INDIVIDUAL AND OFFICIAL CAPACITY;
POLICE OFFICER RYAN LOOMIS, SHIELD #11460;
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY;
AND POLICE OFFICER QUINCY SMITH SHIELD #
21133, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY

Jury Trial: ☐ Yes ☐ No
(check one)

16 Civ. 7921 (CM)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)



I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff's Name MR. KEENAN LEWIS
ID# _____
Current Institution _____
Address _____

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name P.O. ANDREW NASH Shield # 11510
Where Currently Employed (NYPD) 32ND PRECINCT (NYC)
Address _____

Case

Defendant No. 2 Name P.O. RYAN L DOMIS Shield # 11460
 Where Currently Employed (NYPD) 32ND PRECINCT (NYC)
 Address _____

Defendant No. 3 Name P.O. QUINCY SMITH Shield # 21133
 Where Currently Employed (NYPD) 32ND PRECINCT (NYC)
 Address _____

Who did
what?

Defendant No. 4 Name THE CITY OF NEW YORK Shield # _____
 Where Currently Employed 100 CHURCH STREET
 Address NY NY 10007

Defendant No. 5 Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?

N/A

B. Where in the institution did the events giving rise to your claim(s) occur?

N/A

C. What date and approximate time did the events giving rise to your claim(s) occur?

SEPTEMBER 5th, 2014 5:00 P.M.

D. Facts: _____

What
happened
to you?

1

(**STATEMENT OF FACTS:** Plaintiff asserts that Defendant, Police Officer Andrew Nash conducted a Traffic Stop At The South West Corner of of Chisom Place & 142nd Street, In The County of New York and as a result of this Stop, Plaintiff was arrested by, P.O. Nash and Charged with, Criminal Impersonation in the Second Degree NY Pen Law Sec. 190.25(1); VTL 511(1)(a) Aggravated Unlicensed Operation of a Motor Vehicle in the Third Degree-NotDNA Eligible and; VTL 509(1), Unlicensed Driving. (SEE: ATTACHED EXHIBIT (A): MISDEMEANOR INFORMATION BY P.O. NASH DATED: SEP 5TH, 2014, TIME COMPLETED 2235. The Factual Allegations reads as follows: "I OBSERVED THE DEFENDANT DRIVING A BLACK 2011 BMW SEDAN WESTBOUND ON WEST 144TH STREET". "THAT THE KEY WAS IN THE IGNITION, THE ENGINE WAS RUNNING AND THE DEFENDANT AS BEHIND THE WHEEL." "WHEN I STOPPED THE DEFENDANT, I OBSERVED HIM HAND MY PARTNER, POLICE OFFICER RYAN LOOMIS, SHIELD #11460, OF THE 32ND PRECINCT, A NEW YORK STATE LEARNERS PERMIT BEARING THE NAME CHAZ BOBO, BEARING THE ADDRESS OF 101 WEST 147th STREET, NEW YORK, AND A DATE OF JULY 31, 1988." "THE DEFENDANT STATED TO ME, IN SUBSTANCE, THAT HIS NAME WAS CHAZ BOBO AND THAT HE LIVED AT THE ADDRESS ON THE LEARNERS PERMIT." "THE DEFENDANT LATER ADMITTED TO ME THAT HIS NAME WAS KEENAN LEWIS." (P.O. NASH CONTINUED ON PAGE TWO:) "I SEARCHED THE NEW YORK DEPARTMENT OF MOTOR VEHICLES DATABASE AND DETERMINED THAT-

CONTINUED ON ATTACHED PAGES:

Was anyone else involved?

Who else saw what happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

As A result of this false arrest and incarceration, including the judicial process of plaintiff's bail statute being revoked. The New York State Division of Parole violated this Plaintiff and the cause of that violation was this prosecution and arrest. The violation was dismissed, and/or the case was settled by a plea to a violation, which dismissed the original Misdemeanor counts. The violation is not a charge sufficient for a Parole Violation, yet, the Plaintiff suffered same. Was held on Parole through Ministerial Negligence, inter-alia. The Parole Hold became a (K-Calendar hold, and the proximate cause of the 179 days detained was this arrest. The prosecution was terminated, and the Misdemeanor Complaint was in violation of (C.P.L. 100.15(3)) and Manufactured for another investigation.

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes _____ No _____ N/A

PAGE TWO: ATTACHED STATEMENT OF FACTS
LEWIS V. NYC, et al 16 CV 7921
AMENDED COMPLAINT

2. A). THE DEFENDANT HAS ONLY BEST ISSUED AN IDENTIFICATION CARD DOES NOT HAVE A VALID **DRIVERS** LICENSE;"B)." " THE DEFENDANT'S PRIVILEGE TO OPERATE A MOTOR VEHICLE IS PRESENTLY SUSPENDED WITH NO SCOFFS ON TWO DATES (2 of 2);" "and C). THERE IS A LICENSED DRIVER NAMED CHAZ BOBO, WITH AN ADDRESS OF 101 WEST 147th STREET, NEW YORK, AND A DATE OF BIRTH OF JULY 31, 1988." [2]

"KNOW THAT THE DEFENDANT KNEW HIS PRIVILEGES OF OBTAINING A LICENSE AND/OR OPERATING A MOTOR VEHICLE WAS SUSPENDED **BECAUSE** THE COMPLETE CHECK REVEALED THAT HIS PRIVILEGE OF OPERATING A MOTOR **VEHICLE** WAS SUSPENDED FOR FAILURE TO ANSWER A NEW YORK SUMMONS AND ALL SUCH SUMMONSES HAVE PRINTED ON THEM, "IF YOU DO NOT ANSWER THIS TICKET BY MAIL WITHIN FIFTEEN DAYS YOUR LICENSE WILL BE SUSPENDED." "THE SUSPENSION OCCURS AUTOMATICALLY (**By Computer**) WITHIN FOUR WEEKS OF THE DEFENDANT'S FAILURE TO ANSWER."

Officer Nash Signed under Penalty of Perjury pursuant to, Section 210.45 of The Penal Law at, 2235 and on, 9/5/14.

3. The Plaintiff did not engage in any illegal activity, did not break any **type** of Vehicle Laws, Traffic Laws, nor was anything inside or outside the Vehicle defective to create **Probable Cause** to pull over said Vehicle. The arrest was based upon observations claimed to have been by, Police Office Andrew Nash and Police Officer Ryan Loomis. These defendant's falsely claimed all event's and committed perjury upon writing and listing their TRaffic Stop Events and also, arrest events. Other then the false claims made by P.O. Nash and P.O. Loomis, there is and was no other evidence linking the Plaintiff to any illegal activity that took place on the date of September 5th, 2014.

Despite all of this, the **Plaintiff** was charged with the counts outlined above, and at his arraignment and the Plaintiff's Bail on a unrelated charge issued on February 22nd, 2014, was revoked on September 17th, 2014, also, a Parole Detainee Hold was issued up until, June 16th of 2015.

4. In the Month of February 2015, Plaintiff received a Disorderly Conduct Violation for this Complaint and Arrest on, September 5th, 2014. Yet, THE NYS DIVISION OF PAROLE WOULD NOT LIFT THE PAROLE HOLD/WARRANT UNTIL, JUNE 29TH, 2015, AND ON JULY 1ST, 2015, The Plaintiff was Released inter-alia, On A Secured Bail. Yet, Still held on the Warrant. Parole Judge, Beltrani refused to and claimed that Plaintiff had a violation Felony Pending, which was not true, and which forced Plaintiff to a K-Calendar.

Upon information and belief, defendant's, P.O. Nash and P.O. Loomis, the arresting Officers, committed perjury when providing information for, and affirming the Criminal Complaint, also upon written Arrest Reports (which was sworn to by Defendant P.O. Nash, defendant # 2, and for which provided information in the preparation thereof. Moreover, P.O. Nash was the Controlling Officer of the operation and either knew or should have known that one of his team members made false statements with him. Defendant, P.O. Nash continued to make false statements to the New York County District Attorney's Office, which resulted in their attempt to prosecute this matter. Even though the Complaint is Defective.

[2] The Misdemeanor Complaint is lacking adequate grammer and doesn't make sense, also, in some areas, un-readable.

PAGE THREE: ATTACHED STATEMENT OF FACTS
LWEIS V. NYC, et al 16 CV 7921
AMENDED COMPLAINT

This is including presenting evidence to a jury and committing perjury before the Grand Jury by making more false statements.

SEE: ATTACHED EXHIBIT (B): "AFFIDAVIT IN SUPPORT OF SEARCH WARRANT" BY P.O. ANDREW NASH SIGNED BY (ADA) MICHAEL PASINKOFF OF NEW YORK COUNTY DISTRICT ATTORNEYS OFFICE, ALSO, P.O. NASH SHIELD # 11510 AND DATED; 1/13/15.

5. This Affidavit also includes an Attached Search Warrant for another item found inside of the target vehicle on September 5th, 2014, "BLACK HANDHELD MAGNETIC STRIP READER".

Located in Paragraph (3) which is continued and listed on Page two of the Affidavit and starting on page one, P.O. NASH swore under oath to probable cause facts that were apart of the arrest event on Sep 5th, 2014. Yet, which is not presented in his factual allegations of the original complaint dated, September 5th, 2014. Quoting: Paragraph (3):

"THE INFORMATION CONTAINED IN THIS AFFIDAVIT IS BASED UPON INTERVIEWS WITH WITNESSES, REVIEWS OF WITNESSES STATEMENTS OR REPORTS BY OTHERS WHO CONDUCTED INTERVIEWS, MY CONVERSATIONS WITH OTHER POLICE OFFICERS, MY REVIEW OF DOCUMENTS RELATED TO THIS INVESTIGATION, PERSONAL OBSERVATIONS OR REPORTS OF OBSERVATIONS OF OTHER POLICE OFFICERS, AND INFERENCES I HAVE DRAWN FROM THIS INFORMATION. IT DOES NOT, HOWEVER, INCLUDE ALL OF THE INFORMATION KNOWN TO ME WITH RESPECT TO THIS INVESTIGATION, BUT ONLY THE INFORMATION THAT IS NECESSARY TO ESTABLISH THE 2011 BLACK NMW 5 SERIES, LICENSE PLATE # GRU8887 (HEREINAFTER THE "TARGET VEHICLE")."

"SINCE THE REAR LICENSE PLATE WAS IMPROPERLY DISPLAYED, I PULLED THE TARGET VEHICLE OVER."

6. This statement as probable cause for the stop was left out of the misdemeanor complaint all together and is perjury in nature. (SEE: EXHIBIT (C): ATTACHED SEARCH WARRANT DATED: 1/13/2015.)

(SEE: EXHIBIT (D): AFFIDAVIT IN SUPPORT OF SEARCH WARRANT BY; P.O. QUICY SMITH, SHIELD # 21133 AND DATED; SEPTEMBER 6TH, 2014).

This is a Team Member that is also working on the investigation. Yet, it is unclear why it is that, P.O. SMITH was used to obtain this Search Warrant? This Affidavit was made to obtain a Search Warrant for a Set of Phones. (SEE: EXHIBIT (E): "PEOPLES VOLUNTARY DISCLOSURE FORM" (V.D.F.) REQUESTED BILL OF PARTICULARS BY DEFENSE'S OMNIBUS MOTION." (4 of 4 Pages), Un-Dated or Signed?

The defense Attorney gave a copy of this document to the Plaintiff and it is clearly seen that the District Attorney's Office does not disclose any items or property that could be taken as a result of the September 5th, 2014 Traffic Stop and Arrest. Therefore, it was unknown to the Plaintiff that any phones were being investigated by Search Warrant.

Yet, P.O. Smith stated in his Search Warrant Affidavit, inter-alia, On Page (3),-

PAGE FOUR: ATTACHED STATEMENT OF FACTS
LEWIS V. NYC, et. al 16 CV 7921
AMENDED COMPLAINT

that, Quoting: "I AM INFORMED BY POLICE OFFICER NASH THAT ON SEPTEMBER 5, 2014, OFFICER NASH OBSERVED A 2011 BLACK BMW 5-SERIES, LICENSE PLATE # GRU8887, to wit, THE TARGET VEHICLE, DRIVING ON 142nd Street. SINCE THE VEHICLE HAD IMPROPERLY DISPLAYED LICENSE PLATE, OFFICER NASH PULLED THE VEHICLE OVER. THE VEHICLE WAS OPERATED BY KEENAN LEWIS' LICENSE WAS SUSPENDED AND ACCORDINGLY PLACED HIM UNDER ARREST. OFFICER NASH THEN TOOK THE TARGET VEHICLE INTO POLICE CUSTODY. DURING ARREST PROCESSING, OFFICER NASH RECOVERED A GRAY IPHONE, MODEL #A1429 AND A BLACK SAMSUNG GALAXY CELLULAR TELEPHONE. BOTH THOSE PHONES WERE VOUNCHED UNDER INVOICE NUMBER 1000547834."

- 7, The Plaintiff does not know why the District Attorney did not disclose these phones, nor let the plaintiff know that he was the subject of a Targeted Investigation. Yet, the Traffic Stop must have just been a Pretext for the investigation and the Traffic Stop was just staged. Therefore, a Malicious Prosecution Claim may be inside of this Civil Rights Suit.

THE PLAINTIFF CLAIMS MALICIOUS PROSECUTION TOOK PLACE BY THE DEFENDANTS by misrepresenting and falsifying evidence and arrest events before the New York County District Attorney. Defendants did not make a complete and full statement of facts to the District Attorney. Defendants withheld exculpatory evidence from the District Attorney. Defendant's were directly and actively involved in the initiation of criminal proceedings against Plaintiff KEENAN LEWIS. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff KEENAN LEWIS. Defendants acted with malice in initiating criminal proceedings against Plaintiff KEENAN LEWIS.

Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff KEENAN LEWIS. Defendants lacked probable cause to continue criminal proceedings against Plaintiff KEENAN LEWIS. As a result of the foregoing, Plaintiff's liberty was restricted for an extended of time, be was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical without probable cause. Therefore, the Arrest Was False and violatied the 4Th Amendment To The United States Constitution.

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes _____ No _____ Do Not Know _____ N/A

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes _____ No _____ Do Not Know _____ N/A

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes _____ No _____ N/A

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes _____ No _____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? _____
N/A

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any: _____

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____

N/A

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount). For Malicious Prosecution and False Arrest
The Plaintiff Request \$350.00 Aday, For The 179 Days of Detained Incarceration
on the Misdemeanor Complaint and Caused Parole Violation detention, including
\$5,000,000.00 For The Constitutional Violations, 4th & 14th Amendments, and Mal-
icious Proseution & False Arrest as related to Negligence Conduct and Malice
intentional emotional stress, Infliction of Emotional Duress, Pain & Suffering,
Mental Stress, punitive damages included that this court deems just, also
Pro-se Attorney's Fees and Costs asociated with this litigation pursuant to
(PLRA) ACTS, 28 USC 1997(e). And including \$1,000,000.00 For Each Party-
Defendant and Cause of Action.

VI. Previous lawsuits:

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

AMENDED COMPLAINT ONLY.

Yes _____ No _____

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

N/A

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes _____ No _____

NO.

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

6. Is the case still pending? Yes ____ No ____
If NO, give the approximate date of disposition _____
7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 4th day of January, 2017.

✱ Signature of Plaintiff Keenan Lewis
Inmate Number _____
Institution Address _____
Plaintiff KEENAN LEWIS, PRO-SE

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 4th day of January, 2016 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York. **One Original & Two Copies of said Amended Complaint As Ordered By Court.**
28 USC 1746

✱ Signature of Plaintiff: Keenan Lewis
Keenan Lewis

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK
KEENAN LEWIS

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

**AMENDED
COMPLAINT**

under the Civil Rights Act,
42 U.S.C. § 1983

THE CITY OF NEW YORK, N.Y.C. POLICE
OFFICER ANDREW NASH, SHIELD # 11510, IN
HIS INDIVIDUAL AND OFFICIAL CAPACITY;
POLICE OFFICER RYAN LOOMIS, SHIELD #11460;
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY;
AND POLICE OFFICER QUINCY SMITH SHIELD #
21133, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY

Jury Trial: ☐ Yes ☐ No
(check one)

16 Civ. 7921 (CM)

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff's Name MR. KEENAN LEWIS
ID# _____
Current Institution _____
Address _____

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name P.O. ANDREW NASH Shield # 11510
Where Currently Employed (NYPD) 32ND PRECINCT (NYC)
Address _____

Fax Ber er

8/5/2014 10:32:28 PM FAX

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

EXHIBIT (A)

THE PEOPLE OF THE STATE OF NEW YORK

-a gainst-

MISDEMEANOR

Keenan Lewis (M 24),

Defendant.

Police Officer Andrew Nash, Shield 11510 of the 32nd Precinct, states as follows:

the defendant is charged with:

1 PL 190.25(1)

Criminal Impersonation in the Second Degree
(defendant #1: 1 count)

2 VTL 511(1)(a)

Aggravated Unlicensed Operation of a Motor
Vehicle in the Third Degree -Not DNA Eligible
(defendant #1: 1 count)

3 VTL 509(1)

Unlicensed Driving
(defendant #1: 1 count)

On or about September 5, 2014 at about 5:00 P.M., at the south west corner of
 hisum Place & West 147th Street in the County and State of New York, the defendant
 impersonated another and acted in such assumed character with intent to obtain a benefit,
 and to injure and defraud another; the defendant operated a motor vehicle upon a public
 highway while having reason to know that his license and privilege of operating such vehicle
 in this state and his privilege of obtaining such a license was suspended and revoked; the
 defendant operated a motor vehicle upon a public highway and upon a sidewalk and to and
 from a lot adjacent to a public garage, supermarket, shopping center and car washing
 establishment and to and from and into a public garage and car washing establishment
 without being duly licensed

the factual basis for these charges are as follows:

I observed the defendant driving a black 2011 BMW sedan westbound on West 144th Street,
 that the key was in the ignition, the engine was running and the defendant as behind the
 wheel. When I stopped the defendant, I observed him hand my partner, Police Officer Ryan
 Loomis, Shield #11460, of the 32nd Precinct, a New York State Learners Permit bearing the
 name Chaz Lobo, bearing an address of 101 West 147th Street, New York, and a date of
 birth of July 31, 1988. The defendant stated to me, in substance, that his name was Chaz
 Lobo and that he lived at the address on the Learners Permit.
 The defendant later admitted to me that his name was Keenan Lewis.

Fax Ser. er

9/5/2014 10:32:22

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

MISDEMEANOR

-a gainst-

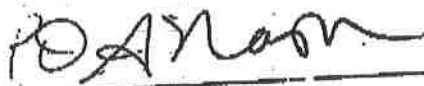
Keenan Lewis (M 24),

Defendant.

searched the New York Department of Motor Vehicles Database and determined that a) the defendant has only been issued an Identification Card does not have a valid driver's license; b) the defendant's privilege to operate a motor vehicle is presently suspended with two scoops on two dates (2 or 2); and c) there is a licensed driver named Chaz Bobo, with an address of 111 West 147th Street, New York, and a date of birth of July 31, 1988.

know that the defendant knew his privilege of obtaining a license and/or operating a motor vehicle was suspended because the computer check revealed that his privilege of operating a motor vehicle was suspended for failure to answer a New York summons and all such summonses have printed on them, "If you do not answer this ticket by mail within fifteen days your license will be suspended." The suspension occurs automatically (by computer) within four weeks of the defendant's failure to answer.

These statements made by this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.



Police Officer Andrew Nas

9/5/14

Date

2235

Time

2637425

2011 Black BMW 5 Series, License Plate # GRU8887 (hereinafter the "the target vehicle"). Since the rear license plate was improperly displayed, I pulled the target vehicle over. The driver of the target vehicle was an individual known to me as Keenan Lewis. Mr. Lewis was the sole occupant of the target vehicle. I also observed bullet holes in the exterior of the target vehicle as well as broken glass in the backseat of the target vehicle. I requested identification from Mr. Lewis who in turn provided me with an identification bearing the name of "Chaz Bobo." While providing me with this identification, Mr. Lewis also stated that his name was in fact Chaz Bobo. Since Mr. Lewis was providing false information regarding his pedigree information, I placed him under arrest. Additionally, the target vehicle he was driving was seized and brought back to the 32nd Precinct. Upon further investigation, I determined that Mr. Lewis was driving with a suspended license.

- b. Prior to arresting Mr. Lewis, I reviewed a report relating to a shooting which occurred on August 29, 2014 in the vicinity 137th Street between Lenox and 7th Avenue. The victim of that shooting was in fact Mr. Lewis. Since it was believed that the vehicle Mr. Lewis was driving on September 5, 2014 was the same vehicle he was driving when he was shot on August 29, 2014, a search warrant was obtained to search the target vehicle. I reviewed a report prepared by Police Officer Brengie Vasquez, Shield #11169, of the Manhattan North Evidence Collection Team. According to the report, the warrant was executed on September 8, 2014. After the execution of the warrant, I am informed by Police Officer Arthur Scibelli, Shield #3320 that he removed all personal property from the vehicle, placed all those items in a clear plastic bag, sealed the bag and placed the bag in the property room of the 32nd precinct. Additionally, Officer Scibelli affixed a copy of the vehicle's voucher to the plastic bag and annotated the voucher with my name.

c. On or about November 19, 2014, I was informed by Officer Scibelli that he had removed property from the target vehicle as described above. Accordingly, I began to inventory the contents of the bag. During that process, I discovered, among other items, a black handheld magnetic strip reader (to wit "the target device"). I vouchered the device under invoice number 1000579180. The device is currently in the custody of the New York City Police Department.

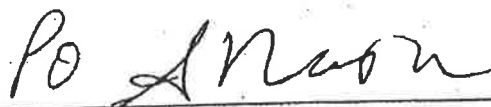
d. Between the time of the seizure of the target vehicle, and my recovery of the target device, an investigation into the ownership of the vehicle began. The vehicle was registered to a person by the name Enid Semidey. A search of the DMV database revealed that there were approximately seven other vehicles registered in this person's name. Additionally, I reviewed documents provided by GEICO in connection with the insurance of the target vehicle. The vehicle's insurance policy had been paid with a Citibank Credit Card on September 27, 2014. According to the documents provided by Citibank, the credit card used to make the payment was a corporate card for Blackstone, in the name of John Studzinski. The amount of that payment, which also included insurance on other vehicle, was \$3,489.51. According to documents provided by Citibank, that charge was an unauthorized and fraudulent transaction. I reviewed additional fraudulent charges listed in relation to the same credit card used to pay the insurance for the target vehicle. There were, among numerous other fraudulent charges, a charge processed on October 1, 2014 in the amount of \$1,000, for "INFINITY FINANCIAL SERVICES" as well as a charge on October 3, 2014 in the amount of \$602.75 for "CHRYSLER CAPITAL." I reviewed financing documents provided by Infinity Financial Services and Chrysler Capital. Both these documents relate

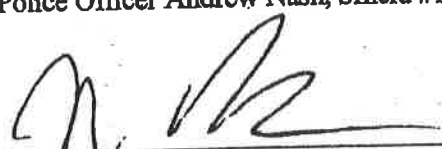
They illegally held the car by securing warrant. Denied the car body to make the car

Look up Arthur Scibelli #3320 Evidence at the 2 months

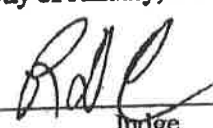
I was in jail had no car it was in police custody

No previous application has been made in this matter to any other Judge, Justice, or Magistrate. The People request that the application in this matter and any record made or testimony given be sealed, except for one copy upon the request of the New York County District Attorney's Office.


Police Officer Andrew Nash, Shield #11510


Michael Pasinkoff
Assistant District Attorney

Sworn to before me this
13th Day of January, 2015


Judge

HON. R. CARRUTHERS

PT. 81 JAN 13 2015

EXHIBIT (C):

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

IN THE NAME OF THE PEOPLE OF THE STATE OF NEW YORK
TO ANY POLICE OFFICER OF THE CITY OF NEW YORK

SEARCH WARRANT

Proof by affidavit having been made this day before me by Police Officer Andrew Nash, Shield No. 11510 of the 32nd Precinct, New York City Police Department, (i) that there is reasonable and probable cause to believe that certain property, evidence, and records, to wit:

- a. Any and all subscriber and account information and history, and retained account data, for f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS"), including: payment history, detailed billing information, method of payment, including full debit, credit, or bank account numbers used, Google Drive contents, Contacts or "Buddy List" content, Google Calendar, sent and received email messages that are or were in the account, saved or draft email messages, any files attached to any email messages, Internet Protocol ("IP") log history, connection log data, account creation data, passwords, sign-on codes, account numbers, and any other information maintained by or within the databases of the service provider and related entities regarding the named email account and subscriber and any linked email accounts and subscribers, which shows or tends to show the following:
 - (i) the identity of the user of the email address and account, which may be evidenced through, among other things, billing and payment information, passwords, sign-on codes, IP addresses, other email addresses used or corresponded with, phone numbers, addresses, account numbers for other internet accounts and non-internet accounts, names used, correspondence, and writing style; and
 - (ii) involvement in Identity Theft, Criminal Possession of Stolen Property, Forgery, Grand Larceny, Criminal Possession of a Forged Instrument, Unlawful Possession of Personal Identification Information, and/or involvement in the planning of, recruiting for, or commission of those crimes; communication with witnesses to and victims of the above-named crimes; communication with third parties relating to witnesses to and victims of the above-named crimes; and communication with third parties while using aliases or other identities.
- b. Entries, stored information, or communications to or from others tending to show that the owner/user of f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS")

utilized such email account in order to commit the above-mentioned crimes, and/or to plan, recruit others for, or otherwise engage in the above-mentioned crimes

- c. Evidence of possession or attempt to obtain credit card numbers including photographs of credit card account numbers
- d. Evidence of the possession or attempted possession of vehicles including but not limited to emails relating to the financing or insurance of vehicles
- e. Emails relating to the rental of vehicles
- f. Communications between Leonardo Mendoza, Francis Rodriguez, Diana Semidey, Enid Semidey, Rudy Junior Cordero, Nico Vega, Lauren Henriquez, Nunez Morales, Abimail Baez, Thomas Rivera, Elizabeth Reyes, Andrea Otero, Romaine Quillan; Niaqawana Williams and Keenan Lewis

may be found in the Google (a/k/a gmail.com) account associated with email addresses

f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and

missfuller31@gmail.com and (ii) that there is reasonable and probable cause to believe that the above-

described property constitutes evidence and tends to demonstrate that an offense was committed, that

a particular person participated in the commission of an offense, and that the target email accounts

have been used, or was possessed for the purpose of being used, to commit or conceal the commission

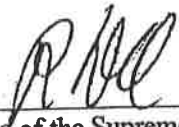
of an offense.

YOU ARE THEREFORE COMMANDED to search, enter, retrieve, examine, copy, and analyze the Google servers and Google (a/k/a gmail.com) account associated with email address f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS"), from the time period from inception of the target email account to the date of the warrant, for any and all payment history, detailed billing information, method of payment and credit card numbers used, contacts, sent and received email messages that are or were in the account, saved or draft email messages, any files attached to such email messages, basic subscriber and account information, the contents of any Google Drive account, and Internet Protocol ("IP") log history, and if you find such property or any part thereof, to bring it before the Court without unnecessary delay.

The Court authorizes the email service provider, Google (a/k/a gmail.com), to conduct the search/records check of its own records, servers, and computer systems, and to provide the results to the New York City Police Department or the New York County District Attorney's Office, in an electronic format convenient for law enforcement. Investigators of the New York County District Attorney's Office or other law enforcement personnel are not required to be present while this search/records check is conducted by the email service provider.

Further, this Court hereby authorizes members of the New York City Police Department and the New York County District Attorney's Office to seize, search, retrieve, and view all the data, information, and images provided to them by the email service provider, Google (a/k/a gmail.com), and to print and otherwise reproduce them by converting or copying them into storage in another device. Notwithstanding this authorization, the warrant/order is deemed "executed" when it is served upon the email provider, and subsequent review is deemed analysis. Further, pursuant to 18 U.S.C. §2705(b), this Court orders Google (a/k/a gmail.com) not to notify or otherwise disclose the existence or execution of this warrant/order to any associated user/accountholder, until the conclusion of this investigation or otherwise by court order.

This warrant must be executed within 10 days of the date of issuance.


Justice of the Supreme Court

Dated: New York, New York

HON. R. CARRUTHERS

PT. 81 JAN 13 2015

EXHIBIT (D) :

NO 934S-2014

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

IN THE MATTER OF AN APPLICATION FOR A
WARRANT TO SEARCH

(i) A 2011 BLACK BMW 5 SERIES, LICENSE PLATE # GRU8887,
CURRENTLY IN THE CUSTODY OF THE NEW YORK POLICE
DEPARTMENT ("THE TARGET VEHICLE") and

(ii) A GRAY IPHONE, MODEL #A1429 AND A BLACK
SAMSUNG GALAXY S 2 CELLULAR TELEPHONE, BOTH HELD
UNDER VOUCHER 1000547834 ("THE TARGET CELLULAR
TELEPHONES")

AFFIDAVIT IN SUPPORT OF
SEARCH WARRANT

Police Officer Quincy Smith Shield # 21133, of the 32nd Detective Squad of the New York City Police Department ("NYPD"), being duly sworn, deposes and says:

1. I am a Police Officer assigned to the 32nd Detective Squad and as such I am a public servant of the kind specified in CPL 690.05(1). I have been a member of the New York City Police Department for over nine years. I have made over four hundred arrests and have assisted in the execution of at least five search warrants.

2. This affidavit is submitted in support of an application for a warrant to search a 2011 Black BMW 5 Series, License Plate # GRU8887 ("the target vehicle") and a Gray Iphone, Model #A1429 and a Black Samsung Galaxy S 2 Cellular telephone, both held under voucher 1000547834 ("the target cellular telephones"), where there is reasonable cause to believe that evidence of the commission of the crimes of Criminal Possession of a Weapon in the Second Degree, Penal Law § 265.03, Attempted Murder in the Second Degree, Penal Law §§ 110/125.25(1), may be found in the form of the following property:

- a. Projectiles, spent bullets, shell casings discharged from firearms or any other evidence demonstrating that a firearm was discharged in proximity to the target vehicle
- b. Blood stains or other bodily tissue

- c. Blood stained clothing
- d. EZ Passes
- e. Any electronic devices which store GPS information or other information regarding the use of the target vehicle
- f. any and all cellular telephones, cameras, video-recorders, other electronic devices and/or equipment capable of storing data, information and images, and their components and accessories, including, but not limited to, wires, cords, monitors, software, hard drives and chargers;
- g. any and all books, manuals, guides or other documents containing information about the operation and ownership of a cellular telephone, camera, video recorder, or other electronic storage device present in the target vehicle, including, but not limited to, computer, cellular telephone and software user manuals;
- h. evidence of ownership and use of the target vehicle and the target cellular telephones, or the use of property located therein by any person, including but not limited to keys, telephone bills, utility bills, bank statements, leases, deeds, or rent receipts related to the target premises or other real property, mail addressed to or from the target premises or other documents bearing the address of the target premises, identification bearing the name or photograph of any person, telephone-books, address books, date books, calendars, personal papers, driver's licenses, vehicle registration, vehicle insurance documents, vehicle repair documents, tooth and hair brushes, videotapes and photographs of persons, fingerprints, handprints, footprints, shoe impressions, hairs and fibers, swabs and/or samples of DNA and other forensic and trace evidence;

3. With respect to the seizure and search of electronic storage devices, cellular telephones, cameras, video recorders and other electronic devices and/or equipment capable of storing the above described property in addition to searching for the items described above in Paragraph 2, that authorization be granted to search these devices for:

- a. Evidence of communications relating to a shooting which occurred on August 29, 2014 including text messages, photographs, emails or any other form of communication
- b. any and all data, information, or images evidencing internet usage history for the time period from August 27, 2014 through September 6, 2014;
- c. any and all data, information, or images which evidence ownership and use of the device, including, but not limited to, calendar entries, email account addresses, stored telephone numbers and names, nicknames, and/or labels assigned to said numbers, photographs, videos, bank account documents, bills and invoices, recorded voice memos, text messages, instant messenger messages and letters and voice mails stored on any seized device;
- d. any and all data, information, or images evidencing passwords which may be used to

unlock or decrypt data, information or images stored on the device, which may or may not be stored in a locked or encrypted fashion, whether said passwords are letters, numbers, characters, words, or data strings(sequence of characters);

e. Evidence of communication made immediately before or after the shooting which occurred on August 29, 2014 at approximately 4:30pm including phone records and cellular telephone number assigned to the target devices

f. the identify of all individuals who either sent a received a communication to the target cellular telephones from August 29, 2014 to the present

4. It is also requested for evidentiary purposes that this Court grant authorization for law enforcement personnel to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

5. With respect to the stored electronic data, information and images contained in computers and other electronic devices described above and/or their components and accessories, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

6. As set forth below, there is reasonable cause to believe the above described property constitutes evidence, tends to demonstrate that an offense was committed and that a particular person participated in the commission of said offense.

7. I am informed by Keenan Lewis that on August 29, 2014 at approximately 4:30pm, informant heard gunshots and immediately noticed he had been shot in his arm and in his back. Mr. Lewis then proceeded to Harlem Hospital where he received treatment for the gunshot wounds. I began investigating the above described shooting. Accordingly, I proceeded to the vicinity of the reported shooting. In the vicinity of 138 West 137th Street, I observed a shell casing which had been discharged from a 380 caliber firearm. I also observed a trail of blood in the vicinity of 137th Street and 7th Avenue. I obtained surveillance video from 175 West 137th Street. At approximately 4:43pm on August 29, 2014, individuals pictured in the video seem to react to the sound of gun fire in that the individuals pictured on the video all crouch down, look and subsequently move away from the location which I determined to be the location of the shooting. A moment after the individuals react to the sound of gun fire, I observed what appears to be a Black BMW driving westbound on 137th Street.

I am informed by Police Officer Nash that on September 5, 2014, Officer Nash observed a 2011 Black BMW 5 Series, License Plate # GRU8887, to wit, the target vehicle, driving on 142nd Street. Since the vehicle had an improperly displayed license plate, Officer Nash pulled the vehicle over. The vehicle was operated by Keenan Lewis, the same individual mentioned and described above. Officer Nash then determined that Mr. Lewis' license was suspended and accordingly placed him under arrest.

Officer Nash then took the target vehicle into police custody. During arrest processing, Officer Nash recovered a Gray Iphone, Model #A1429 and a black Samsung Galaxy cellular telephone, to wit, the target cellular telephone. Both those phones were vouchered under invoice number

1000547834.

After the target vehicle was taken into police custody, I observed a blood stain on the driver seat, a bullet hole in the front driver side door covered by black electrical tape and another bullet hole on the rear driver side door. The bullet hole in the rear driver side door was covered by a silver sticker. Based upon my observations of the target vehicle and my review of the surveillance video, the target vehicle appears to be the same vehicle I observed on the above described surveillance video moments after the shooting. Thus, based upon my review of the surveillance video, the blood stain in the car, the apparent bullet holes in the vehicle as well as other forensic evidence, I believe Mr. Lewis was actually inside of the vehicle when he was shot.

Further, I interviewed Mr. Lewis on August 29, 2014 while he was inside of Harlem Hospital receiving medical treatment. Although Mr. Lewis stated that he is unable to identify the perpetrator of the shooting, I believe based upon my own investigation and experience as a police officer that the identity of the shooter is actually known to Mr. Lewis. First, Mr. Lewis gave inconsistent accounts as to the circumstances immediately leading up to and following the shooting. Mr. Lewis informed me that he was walking southbound when he was shot but previously informed Officer Christopher Wintermute that he was walking northbound. Further, Mr. Lewis informed Officer Christopher Wintermute that he walked to Harlem Hospital but then informed me that he took a cab to the hospital. Finally, based upon my own experience as a police officer, victims are sometimes unwilling to identify perpetrators known to them because of a fear of retaliation. Thus, based upon my own experience, Mr. Lewis likely revealed more information regarding the shooting to individuals he spoke with after the incident occurred. A search of the cellular telephones recovered from Mr. Lewis, as well as any additional communication devices present in the target vehicle, will reveal the identity of those individuals and may reveal the identity of the actual shooter. Further, I believe that a search of the phones will reveal information as described above since Mr. Lewis was in possession of at least one cellular telephone during and immediately after the shooting. I believe that Mr. Lewis was in possession of at least one cellular telephone since I spoke to an individual via telephone, Jaimee Walker, who identified herself as Mr. Lewis' girlfriend. Ms. Walker informed me that Mr. Lewis called her and informed her that he was shoot. Immediately after telling me that Mr. Lewis had called her and informed her of the shooting, Ms. Walker hung up the phone. However, Mr. Lewis denied being in possession of any cellular telephones during the time of the shooting, or immediately after.

8. As indicated above, I am seeking to seize and remove from the target vehicle any computers as defined in Penal Law Section 156.00(1), as well as cellular telephones, cameras, video-recorders, and other electronic devices capable of storing data, information and images.

a) Because such devices are readily capable of storing data, information and images, it is reasonable to believe that any such devices located in the target premises may contain evidence of the crimes under investigation and sought by this warrant application. Neither I, nor my fellow officers assigned to my unit, have the training and expertise in forensic computer analysis to conduct a thorough and complete forensic search of computers, cellular telephones and/or other electronic storage devices located in the target premises. I am therefore requesting that the Court authorize the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me in accessing, downloading, retrieving, printing, copying or otherwise seizing the computerized and electronic evidence

After the shooting at the Hospital was Mr. Lewis clothing taken as evidence. And sneakers?? So no cell phone was taken b/c it was not one on the scene. Therefore no need to take phone works later!

described above from any devices seized in the target location.

b) Attached hereto and incorporated by reference in my application is a sworn affidavit by a member of the New York County District Attorney's Office's Cybercrime and Identity Theft Bureau.

WHEREFORE, deponent respectfully requests that the court issue a warrant and order of seizure in the form annexed authorizing a search of the target vehicle and the target cellular telephones, for the above described property; and directing that if such property is found, it be brought before the Court.

Authorization is also requested to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

It is also requested that the Court authorize the seizure of computers, cellular telephones, and/or other electronic storage devices as described above for the purpose of conducting an off-site search for the evidence described. In addition, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

It is also requested that the Court authorize that, for purposes of the requirement that a search warrant be executed within ten days as mandated by C.P.L. Section 690.30(1), that with respect to any computers, cellular telephones, and other electronic storage devices, the warrant be deemed executed at the time that said devices are seized and removed from the target premises, and that the search of said devices may continue thereafter for whatever reasonable time is necessary to complete a thorough search pursuant to this warrant. Once said computers and other devices are seized pursuant to the warrant, the data, information and images contained therein will not change, and thus no greater intrusion will result from a thorough search being conducted within a reasonable time.

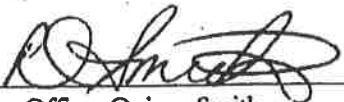
It is also requested that the Court authorize a search of all files and data stored in computers, cellular telephones, and other electronic storage devices, irrespective of how the data is filed, labeled, designated, encrypted, hidden, disguised or otherwise stored.

It is also requested that the Court authorize forensic computer analysts assigned to the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me, as deemed necessary by law enforcement officials, in accessing, downloading, retrieving, printing, copying and otherwise seizing the computerized information and electronic evidence described above from any devices seized in the target location.

It is requested that this affidavit and any transcript of any accompanying sworn testimony in support of this application be sealed, except that permission be granted for an assistant district attorney in the New York County District Attorney's Office to obtain a copy of any such sworn

testimony and that permission be granted for an assistant district attorney in the New York County District Attorney's office to disclose the affidavit and/or accompanying sworn testimony in the course of the lawful discharge of his or her duties pursuant to a criminal investigation and/or prosecution, or upon written order of the Court.

No previous application has been made in this matter to any other Judge, Justice, or Magistrate.



Police Officer Quincy Smith



Michael Pasinkoff

APPROVED: Assistant District Attorney

Sworn to before me this
September 6, 2014

 **HON. LAURIE PETERSON**

Judge

PART AR3
HON L. PETERSON
CT RPT B. OZEMIA
09-06-14

Name of Court Reporter

EXHIBIT (E):

CRIMINAL COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

KEENAN LEWIS,

Defendant.

PEOPLE'S VOLUNTARY
DISCLOSURE FORM

Docket No. 2014NY068521

The People of the State of New York hereby voluntarily disclose to the defendant the following factual information pertaining to the above-captioned case:

A. BILL OF PARTICULARS

1. OCCURRENCE

☐ See Complaint

Date: September 5, 2014
App. Time: 5:20 p.m.
Place: West 142nd Street & Chisum Place

2. ARREST

☐ Approximately same time as occurrence

Date: September 5, 2014
App. Time: 5:26 p.m.
Place: West 142nd Street & Chisum Place

3. The People believe that the accusatory instrument sets forth all factual information required in a bill of particulars. See CPL §200.95(1).

Yes ☒

No ☐ (if no, additional particulars supplied below)

4. Defendant KEENAN LEWIS

acted as principal ☒, accomplice ☐, both ☐.

B. NOTICES

1. STATEMENTS

☒ If checked, the People intend to offer at trial evidence of a statement made by defendant to a public servant. *(Where a statement has been video taped, counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time for viewing the tape or should provide a blank tape for copying.)*

Statement #: 1
Date: September 5, 2014
Approximate Time: 5:20 p.m.
Location: West 142nd Street & Chisum Place
Individual Made To: P.O. Andrew Nash
Substance of Statement: My name is Chaz Bobo. I live at 101 West 147th Street. My date of birth is 7/31/1988. Ok, Keenan Lewis is my real name.

2. IDENTIFICATION

☐ If checked, the People intend to offer at trial testimony regarding an observation of defendant either at the time or place of the commission of the offense or upon some other occasion relevant to the case, to be given by a witness who has previously identified defendant.

C. DISCOVERY

1. ADDITIONAL STATEMENTS

☐ If checked, the People hereby disclose written, oral or recorded statements of a defendant or of a co-defendant to be jointly tried, made, other than in the course of the criminal transaction, to a public servant engaged in law enforcement activity or to a person then acting under his direction or in cooperation with him, and which statements are not given in section B(1) above. CPL §240.20(1)(a).

2. GRAND JURY TESTIMONY

☐ If checked, defendant or a co-defendant to be tried jointly testified before the Grand Jury relating to this criminal action. CPL §240.20(1)(b). *Such testimony is available upon payment of a stenographic fee.*

3.

SCIENTIFIC AND MEDICAL REPORTS

☐ If checked, the People hereby disclose written reports or documents or portions thereof, concerning a physical or mental examination or scientific test or experiment, relating to this criminal action, which were made by, or at the request or direction of a public servant engaged in law enforcement, or by a person whom the People intend to call as a witness of a trial, or which the People intend to introduce at trial. CPL §240.20(1)(c).

PHOTOGRAPHS AND DRAWINGS

☒ If checked, there exist photographs or drawings relating to this criminal action which were made or completed by a public servant engaged in law enforcement, or which were made by a person whom the People intend to call as a witness at trial, or which the People intend to introduce at trial. CPL §240.20(1)(d). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this material.)*

5.

INSPECTION OF PROPERTY

☐ If checked, there exist photographs, photocopies or other reproductions made by or at the direction of a police officer, peace officer or prosecutor of property prior to its release pursuant to the provisions of Penal Law Section 450.10, irrespective of whether the People intend to introduce at trial the property or the photograph, photocopy or other reproduction. CPL §240.20(1)(e). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this property.)*

6.

OTHER PROPERTY

☐ If checked, there exists other property obtained from the defendant, or a co-defendant to be tried jointly, CPL §240.20(1)(f), or from another source. *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this property.)*

7.

TAPES AND ELECTRONIC RECORDINGS

☐ If checked, there exist tapes or other electronic recordings which the People intend to introduce at trial, irrespective of whether such recording was made during the course of the criminal transaction. CPL §240.20(1)(g). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to listen to the tapes or provide a blank tape for copying.)*

8.

BRADY MATERIAL

☐ If checked, there is material appended which the People are required to turn over pursuant to the United States or the New York State Constitution. The People are aware of their continuing obligation to disclose material exculpatory information to defendant and intend to satisfy that obligation as required by law. CPL §240.20(1)(h).

9. COMPUTER OFFENSES

☐ If checked, discovery is hereby served pursuant to CPL §240.20(1)(i) of the time, place and manner of notice given pursuant to Penal Law §156.00(6), which governs offenses for Unauthorized Use of a Computer (Penal Law §156.05) and Computer Trespass (Penal Law §156.10).

10. VEHICLE AND TRAFFIC LAW OFFENSES

☐ If checked, the People hereby disclose written reports or documents or portions thereof, concerning a physical examination, a scientific test or experiment, including the most recent record of inspection, or calibration or repair of machines or instruments utilized to perform such scientific tests or experiments and the certification certificate, if any, held by the operator of the machine or instrument, which tests or examinations were made by or at the request or direction of a public servant engaged in law enforcement activity, or which was made by a person whom the People intend to call as a witness at trial, or which the People intend to introduce at trial. CPL §240.20(1)(k).

11. POLICE OFFICERS INVOLVED

The following are some of the officers who were involved in the arrest or police investigation.

<u>Name</u>	<u>Shield</u>	<u>Command</u>
P.O. Andrew Nash	11510	32nd Precinct
P.O. Ryan Loomis	11460	32nd Precinct

12. SEARCH WARRANTS

☐ If checked, a search warrant was executed during the investigation of this case.

D. DEMAND FOR NOTICE OF ALIBI

Pursuant to CPL §250.20, the People hereby demand that defendant supply the District Attorney with (a) the place or places where the defendant claims to have been at the time of the commission of the crime(s) and (b) the names, residential addresses, places of employment and addresses thereof of every alibi witness upon whom defendant intends to rely to establish his presence elsewhere than at the scene of the crime at the time of its commission, and of every witness in support of such defense. Within a reasonable time after the receipt of the information specified above, the District Attorney will submit a list of any rebuttal witnesses, their addresses, and employers.

EXHIBIT (C):

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

IN THE NAME OF THE PEOPLE OF THE STATE OF NEW YORK
TO ANY POLICE OFFICER OF THE CITY OF NEW YORK

SEARCH WARRANT

Proof by affidavit having been made this day before me by Police Officer Andrew Nash,
Shield No. 11510 of the 32nd Precinct, New York City Police Department, (i) that there is reasonable
and probable cause to believe that certain property, evidence, and records, to wit:

- a. Any and all subscriber and account information and history, and retained account data, for f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS"), including: payment history, detailed billing information, method of payment, including full debit, credit, or bank account numbers used, Google Drive contents, Contacts or "Buddy List" content, Google Calendar, sent and received email messages that are or were in the account, saved or draft email messages, any files attached to any email messages, Internet Protocol ("IP") log history, connection log data, account creation data, passwords, sign-on codes, account numbers, and any other information maintained by or within the databases of the service provider and related entities regarding the named email account and subscriber and any linked email accounts and subscribers, which shows or tends to show the following:
 - (i) the identity of the user of the email address and account, which may be evidenced through, among other things, billing and payment information, passwords, sign-on codes, IP addresses, other email addresses used or corresponded with, phone numbers, addresses, account numbers for other internet accounts and non-internet accounts, names used, correspondence, and writing style; and
 - (ii) involvement in Identity Theft, Criminal Possession of Stolen Property, Forgery, Grand Larceny, Criminal Possession of a Forged Instrument, Unlawful Possession of Personal Identification Information, and/or involvement in the planning of, recruiting for, or commission of those crimes; communication with witnesses to and victims of the above-named crimes; communication with third parties relating to witnesses to and victims of the above-named crimes; and communication with third parties while using aliases or other identities.
- b. Entries, stored information, or communications to or from others tending to show that the owner/user of f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS")

EXHIBIT (D) :

NO 9345-2014

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

IN THE MATTER OF AN APPLICATION FOR A

WARRANT TO SEARCH

(i) A 2011 BLACK BMW 5 SERIES, LICENSE PLATE # GRU8887,
CURRENTLY IN THE CUSTODY OF THE NEW YORK POLICE
DEPARTMENT ("THE TARGET VEHICLE") and

(ii) A GRAY IPHONE, MODEL #A1429 AND A BLACK
SAMSUNG GALAXY S 2 CELLULAR TELEPHONE, BOTH HELD
UNDER VOUCHER 1000547834 ("THE TARGET CELLULAR
TELEPHONES")

AFFIDAVIT IN SUPPORT OF
SEARCH WARRANT

Police Officer Quincy Smith Shield # 21133, of the 32nd Detective Squad of the New York City Police Department ("NYPD"), being duly sworn, deposes and says:

1. I am a Police Officer assigned to the 32nd Detective Squad and as such I am a public servant of the kind specified in CPL 690.05(1). I have been a member of the New York City Police Department for over nine years. I have made over four hundred arrests and have assisted in the execution of at least five search warrants.

2. This affidavit is submitted in support of an application for a warrant to search a 2011 Black BMW 5 Series, License Plate # GRU8887 ("the target vehicle") and a Gray Iphone, Model #A1429 and a Black Samsung Galaxy S 2 Cellular telephone, both held under voucher 1000547834 ("the target cellular telephones"), where there is reasonable cause to believe that evidence of the commission of the crimes of Criminal Possession of a Weapon in the Second Degree, Penal Law § 265.03, Attempted Murder in the Second Degree, Penal Law §§ 110/125.25(1), may be found in the form of the following property:

- a. Projectiles, spent bullets, shell casings discharged from firearms or any other evidence demonstrating that a firearm was discharged in proximity to the target vehicle
- b. Blood stains or other bodily tissue

- c. Blood stained clothing
- d. EZ Passes
- e. Any electronic devices which store GPS information or other information regarding the use of the target vehicle
- f. any and all cellular telephones, cameras, video-recorders, other electronic devices and/or equipment capable of storing data, information and images, and their components and accessories, including, but not limited to, wires, cords, monitors, software, hard drives and chargers;
- g. any and all books, manuals, guides or other documents containing information about the operation and ownership of a cellular telephone, camera, video recorder, or other electronic storage device present in the target vehicle, including, but not limited to, computer, cellular telephone and software user manuals;
- h. evidence of ownership and use of the target vehicle and the target cellular telephones, or the use of property located therein by any person, including but not limited to keys, telephone bills, utility bills, bank statements, leases, deeds, or rent receipts related to the target premises or other real property, mail addressed to or from the target premises or other documents bearing the address of the target premises, identification bearing the name or photograph of any person, telephone-books, address books, date books, calendars, personal papers, driver's licenses, vehicle registration, vehicle insurance documents, vehicle repair documents, tooth and hair brushes, videotapes and photographs of persons, fingerprints, handprints, footprints, shoe impressions, hairs and fibers, swabs and/or samples of DNA and other forensic and trace evidence;

3. With respect to the seizure and search of electronic storage devices, cellular telephones, cameras, video recorders and other electronic devices and/or equipment capable of storing the above described property in addition to searching for the items described above in Paragraph 2, that authorization be granted to search these devices for:

- a. Evidence of communications relating to a shooting which occurred on August 29, 2014 including text messages, photographs, emails or any other form of communication
- b. any and all data, information, or images evidencing internet usage history for the time period from August 27, 2014 through September 6, 2014;
- c. any and all data, information, or images which evidence ownership and use of the device, including, but not limited to, calendar entries, email account addresses, stored telephone numbers and names, nicknames, and/or labels assigned to said numbers, photographs, videos, bank account documents, bills and invoices, recorded voice memos, text messages, instant messenger messages and letters and voice mails stored on any seized device;
- d. any and all data, information, or images evidencing passwords which may be used to

unlock or decrypt data, information or images stored on the device, which may or may not be stored in a locked or encrypted fashion, whether said passwords are letters, numbers, characters, words, or data strings(sequence of characters);

e. Evidence of communication made immediately before or after the shooting which occurred on August 29, 2014 at approximately 4:30pm including phone records and cellular telephone number assigned to the target devices

f. the identify of all individuals who either sent a received a communication to the target cellular telephones from August 29, 2014 to the present

4. It is also requested for evidentiary purposes that this Court grant authorization for law enforcement personnel to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

5. With respect to the stored electronic data, information and images contained in computers and other electronic devices described above and/or their components and accessories, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

6. As set forth below, there is reasonable cause to believe the above described property constitutes evidence, tends to demonstrate that an offense was committed and that a particular person participated in the commission of said offense.

7. I am informed by Keenan Lewis that on August 29, 2014 at approximately 4:30pm, informant heard gunshots and immediately noticed he had been shot in his arm and in his back. Mr. Lewis then proceeded to Harlem Hospital where he received treatment for the gunshot wounds. I began investigating the above described shooting. Accordingly, I proceeded to the vicinity of the reported shooting. In the vicinity of 138 West 137th Street, I observed a shell casing which had been discharged from a 380 caliber firearm. I also observed a trail of blood in the vicinity of 137th Street and 7th Avenue. I obtained surveillance video from 175 West 137th Street. At approximately 4:43pm on August 29, 2014, individuals pictured in the video seem to react to the sound of gun fire in that the individuals pictured on the video all crouch down, look and subsequently move away from the location which I determined to be the location of the shooting. A moment after the individuals react to the sound of gun fire, I observed what appears to be a Black BMW driving westbound on 137th Street.

I am informed by Police Officer Nash that on September 5, 2014, Officer Nash observed a 2011 Black BMW 5 Series, License Plate # GRU8887, to wit, the target vehicle, driving on 142nd Street. Since the vehicle had an improperly displayed license plate, Officer Nash pulled the vehicle over. The vehicle was operated by Keenan Lewis, the same individual mentioned and described above. Officer Nash then determined that Mr. Lewis' license was suspended and accordingly placed him under arrest.

Officer Nash then took the target vehicle into police custody. During arrest processing, Officer Nash recovered a Gray Iphone, Model #A1429 and a black Samsung Galaxy cellular telephone, to wit, the target cellular telephone. Both those phones were vouchered under invoice number

1000547834.

After the target vehicle was taken into police custody, I observed a blood stain on the driver seat, a bullet hole in the front driver side door covered by black electrical tape and another bullet hole on the rear driver side door. The bullet hole in the rear driver side door was covered by a silver sticker. Based upon my observations of the target vehicle and my review of the surveillance video, the target vehicle appears to be the same vehicle I observed on the above described surveillance video moments after the shooting. Thus, based upon my review of the surveillance video, the blood stain in the car, the apparent bullet holes in the vehicle as well as other forensic evidence, I believe Mr. Lewis was actually inside of the vehicle when he was shot.

Further, I interviewed Mr. Lewis on August 29, 2014 while he was inside of Harlem Hospital receiving medical treatment. Although Mr. Lewis stated that he is unable to identify the perpetrator of the shooting, I believe based upon my own investigation and experience as a police officer that the identity of the shooter is actually known to Mr. Lewis. First, Mr. Lewis gave inconsistent accounts as to the circumstances immediately leading up to and following the shooting. Mr. Lewis informed me that he was walking southbound when he was shot but previously informed Officer Christopher Wintermute that he was walking northbound. Further, Mr. Lewis informed Officer Christopher Wintermute that he walked to Harlem Hospital but then informed me that he took a cab to the hospital. Finally, based upon my own experience as a police officer, victims are sometimes unwilling to identify perpetrators known to them because of a fear of retaliation. Thus, based upon my own experience, Mr. Lewis likely revealed more information regarding the shooting to individuals he spoke with after the incident occurred. A search of the cellular telephones recovered from Mr. Lewis, as well as any additional communication devices present in the target vehicle, will reveal the identity of those individuals and may reveal the identity of the actual shooter. Further, I believe that a search of the phones will reveal information as described above since Mr. Lewis was in possession of at least one cellular telephone during and immediately after the shooting. I believe that Mr. Lewis was in possession of at least one cellular telephone since I spoke to an individual via telephone, Jaine Walker, who identified herself as Mr. Lewis' girlfriend. Ms. Walker informed me that Mr. Lewis called her and informed her that he was shot. Immediately after telling me that Mr. Lewis had called her and informed her of the shooting, Ms. Walker hung up the phone. However, Mr. Lewis denied being in possession of any cellular telephones during the time of the shooting, or immediately after.

8. As indicated above, I am seeking to seize and remove from the target vehicle any computers as defined in Penal Law Section 156.00(1), as well as cellular telephones, cameras, video-recorders, and other electronic devices capable of storing data, information and images.

a) Because such devices are readily capable of storing data, information and images, it is reasonable to believe that any such devices located in the target premises may contain evidence of the crimes under investigation and sought by this warrant application. Neither I, nor my fellow officers assigned to my unit, have the training and expertise in forensic computer analysis to conduct a thorough and complete forensic search of computers, cellular telephones and/or other electronic storage devices located in the target premises. I am therefore requesting that the Court authorize the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me in accessing, downloading, retrieving, printing, copying or otherwise seizing the computerized and electronic evidence

After the shooting at the Hospital was Mr. Lewis' clothing taken as evidence. And sneakers?? So no cell phone was taken b/c it was not on the scene. Therefore no need to take phones with lakee!

described above from any devices seized in the target location.

b) Attached hereto and incorporated by reference in my application is a sworn affidavit by a member of the New York County District Attorney's Office's Cybercrime and Identity Theft Bureau.

WHEREFORE, deponent respectfully requests that the court issue a warrant and order of seizure in the form annexed authorizing a search of the target vehicle and the target cellular telephones, for the above described property; and directing that if such property is found, it be brought before the Court.

Authorization is also requested to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

It is also requested that the Court authorize the seizure of computers, cellular telephones, and/or other electronic storage devices as described above for the purpose of conducting an off-site search for the evidence described. In addition, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

It is also requested that the Court authorize that, for purposes of the requirement that a search warrant be executed within ten days as mandated by C.P.L. Section 690.30(1), that with respect to any computers, cellular telephones, and other electronic storage devices, the warrant be deemed executed at the time that said devices are seized and removed from the target premises, and that the search of said devices may continue thereafter for whatever reasonable time is necessary to complete a thorough search pursuant to this warrant. Once said computers and other devices are seized pursuant to the warrant, the data, information and images contained therein will not change, and thus no greater intrusion will result from a thorough search being conducted within a reasonable time.

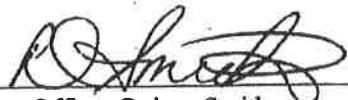
It is also requested that the Court authorize a search of all files and data stored in computers, cellular telephones, and other electronic storage devices, irrespective of how the data is filed, labeled, designated, encrypted, hidden, disguised or otherwise stored.

It is also requested that the Court authorize forensic computer analysts assigned to the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me, as deemed necessary by law enforcement officials, in accessing, downloading, retrieving, printing, copying and otherwise seizing the computerized information and electronic evidence described above from any devices seized in the target location.

It is requested that this affidavit and any transcript of any accompanying sworn testimony in support of this application be sealed, except that permission be granted for an assistant district attorney in the New York County District Attorney's Office to obtain a copy of any such sworn

testimony and that permission be granted for an assistant district attorney in the New York County District Attorney's office to disclose the affidavit and/or accompanying sworn testimony in the course of the lawful discharge of his or her duties pursuant to a criminal investigation and/or prosecution, or upon written order of the Court.

No previous application has been made in this matter to any other Judge, Justice, or Magistrate.


Police Officer Quincy Smith


Michael Pasinkoff

APPROVED: Assistant District Attorney

Sworn to before me this
September 6, 2014

 HON. LAURIE PETERSON

Judge

PART AR3
HON L. PETERSON
CT RPT B. OEREMIA
09-08-14

Name of Court Reporter

Fax Ser er

9/5/2014 10:32:28 PM FAX

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

EXHIBIT TA

THE PEOPLE OF THE STATE OF NEW YORK

-a gainst-

MISDEMEANOR

Keenan Lewis (M 24),

Defendant.

Police Officer Andrew Nash, Shield 11510 of the 32nd Precinct, states as follows:

The defendant is charged with:

1 PL 190.25(1)

Criminal Impersonation in the Second Degree
(defendant #1: 1 count)

2 VTL 511(1)(a)

Aggravated Unlicensed Operation of a Motor
Vehicle in the Third Degree - Not DNA Eligible
(defendant #1: 1 count)

3 VTL 509(1)

Unlicensed Driving
(defendant #1: 1 count)

On or about September 5, 2014 at about 5:00 P.M., at the south west corner of
hisum Place & West 142nd Street in the County and State of New York, the defendant
impersonated another and acted in such assumed character with intent to obtain a benefit,
and to injure and defraud another; the defendant operated a motor vehicle upon a public
highway while having reason to know that his license and privilege of operating such vehicle
in this state and his privilege of obtaining such a license was suspended and revoked; the
defendant operated a motor vehicle upon a public highway and upon a sidewalk and to and
from a lot adjacent to a public garage, supermarket, shopping center and car washing
establishment and to and from and into a public garage and car washing establishment
without being duly licensed

The factual basis for these charges are as follows:

I observed the defendant driving a black 2011 BMW sedan westbound on West 144th Street,
that the key was in the ignition, the engine was running and the defendant as behind the
wheel. When I stopped the defendant, I observed him hand my partner, Police Officer Ryan
Loomis, Shield #11460, of the 32nd Precinct, a New York State Learners Permit bearing the
name Chaz Bobo, bearing an address of 101 West 147th Street, New York, and a date of
birth of July 31, 1988. The defendant stated to me, in substance, that his name was Chaz
Bobo and that he lived at the address on the Learners Permit.
The defendant later admitted to me that his name was Keenan Lewis.

utilized such email account in order to commit the above-mentioned crimes, and/or to plan, recruit others for, or otherwise engage in the above-mentioned crimes

- c. Evidence of possession or attempt to obtain credit card numbers including photographs of credit card account numbers
- d. Evidence of the possession or attempted possession of vehicles including but not limited to emails relating to the financing or insurance of vehicles
- e. Emails relating to the rental of vehicles
- f. Communications between Leonardo Mendoza, Francis Rodriguez, Diana Semidey, Enid Semidey, Rudy Junior Cordero, Nico Vega, Lauren Henriquez, Nunez Morales, Abimail Baez, Thomas Rivera, Elizabeth Reyes, Andrea Otero, Romaine Quillan; Niaqawana Williams and Keenan Lewis

may be found in the Google (a/k/a gmail.com) account associated with email addresses

f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and

missfuller31@gmail.com and (ii) that there is reasonable and probable cause to believe that the above-

described property constitutes evidence and tends to demonstrate that an offense was committed, that a particular person participated in the commission of an offense, and that the target email accounts have been used, or was possessed for the purpose of being used, to commit or conceal the commission of an offense.

YOU ARE THEREFORE COMMANDED to search, enter, retrieve, examine, copy, and analyze the Google servers and Google (a/k/a gmail.com) account associated with email address f.rodriguez1084@gmail.com; niaqawanawilliams@gmail.com; krare0420@gmail.com and missfuller31@gmail.com ("THE TARGET ACCOUNTS"), from the time period from inception of the target email account to the date of the warrant, for any and all payment history, detailed billing information, method of payment and credit card numbers used, contacts, sent and received email messages that are or were in the account, saved or draft email messages, any files attached to such email messages, basic subscriber and account information, the contents of any Google Drive account, and Internet Protocol ("IP") log history, and if you find such property or any part thereof, to bring it before the Court without unnecessary delay.

The Court authorizes the email service provider, Google (a/k/a gmail.com), to conduct the search/records check of its own records, servers, and computer systems, and to provide the results to the New York City Police Department or the New York County District Attorney's Office, in an electronic format convenient for law enforcement. Investigators of the New York County District Attorney's Office or other law enforcement personnel are not required to be present while this search/records check is conducted by the email service provider.

Further, this Court hereby authorizes members of the New York City Police Department and the New York County District Attorney's Office to seize, search, retrieve, and view all the data, information, and images provided to them by the email service provider, Google (a/k/a gmail.com), and to print and otherwise reproduce them by converting or copying them into storage in another device. Notwithstanding this authorization, the warrant/order is deemed "executed" when it is served upon the email provider, and subsequent review is deemed analysis. Further, pursuant to 18 U.S.C. §2705(b), this Court orders Google (a/k/a gmail.com) not to notify or otherwise disclose the existence or execution of this warrant/order to any associated user/accountholder, until the conclusion of this investigation or otherwise by court order.

This warrant must be executed within 10 days of the date of issuance.


Justice of the Supreme Court

Dated: New York, New York

HON. R. CARRUTHERS

PT. 81 JAN 13 2015

EXHIBIT (E):

CRIMINAL COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

-against-

KEENAN LEWIS,

Defendant.

PEOPLE'S VOLUNTARY
DISCLOSURE FORM

Docket No. 2014NY068521

The People of the State of New York hereby voluntarily disclose to the defendant the following factual information pertaining to the above-captioned case:

A. BILL OF PARTICULARS

1. OCCURRENCE

☐ See Complaint

Date: September 5, 2014
App. Time: 5:20 p.m.
Place: West 142nd Street & Chisum Place

2. ARREST

☐ Approximately same time as occurrence

Date: September 5, 2014
App. Time: 5:26 p.m.
Place: West 142nd Street & Chisum Place

3. The People believe that the accusatory instrument sets forth all factual information required in a bill of particulars. See CPL §200.95(1).

Yes ☒

No ☐ (if no, additional particulars supplied below)

4. Defendant KEENAN LEWIS

acted as principal ☒, accomplice ☐, both ☐.

B. NOTICES

1. STATEMENTS

☒ If checked, the People intend to offer at trial evidence of a statement made by defendant to a public servant. *(Where a statement has been video taped, counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time for viewing the tape or should provide a blank tape for copying.)*

Statement #: 1
Date: September 5, 2014
Approximate Time: 5:20 p.m.
Location: West 142nd Street & Chisum Place
Individual Made To: P.O. Andrew Nash
Substance of Statement: My name is Chaz Bobo. I live at 101 West 147th Street. My date of birth is 7/31/1988. Ok, Keenan Lewis is my real name.

2. IDENTIFICATION

☐ If checked, the People intend to offer at trial testimony regarding an observation of defendant either at the time or place of the commission of the offense or upon some other occasion relevant to the case, to be given by a witness who has previously identified defendant.

C. DISCOVERY

1. ADDITIONAL STATEMENTS

☐ If checked, the People hereby disclose written, oral or recorded statements of a defendant or of a co-defendant to be jointly tried, made, other than in the course of the criminal transaction, to a public servant engaged in law enforcement activity or to a person then acting under his direction or in cooperation with him, and which statements are not given in section B(1) above. CPL §240.20(1)(a).

2. GRAND JURY TESTIMONY

☐ If checked, defendant or a co-defendant to be tried jointly testified before the Grand Jury relating to this criminal action. CPL §240.20(1)(b). *Such testimony is available upon payment of a stenographic fee.*

3. SCIENTIFIC AND MEDICAL REPORTS

☐ If checked, the People hereby disclose written reports or documents or portions thereof, concerning a physical or mental examination or scientific test or experiment, relating to this criminal action, which were made by, or at the request or direction of a public servant engaged in law enforcement, or by a person whom the People intend to call as a witness of a trial, or which the People intend to introduce at trial. CPL §240.20(1)(c).

4. PHOTOGRAPHS AND DRAWINGS

☒ If checked, there exist photographs or drawings relating to this criminal action which were made or completed by a public servant engaged in law enforcement, or which were made by a person whom the People intend to call as a witness at trial, or which the People intend to introduce at trial. CPL §240.20(1)(d). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this material.)*

5. INSPECTION OF PROPERTY

☐ If checked, there exist photographs, photocopies or other reproductions made by or at the direction of a police officer, peace officer or prosecutor of property prior to its release pursuant to the provisions of Penal Law Section 450.10, irrespective of whether the People intend to introduce at trial the property or the photograph, photocopy or other reproduction. CPL §240.20(1)(e). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this property.)*

6. OTHER PROPERTY

☐ If checked, there exists other property obtained from the defendant, or a co-defendant to be tried jointly, CPL §240.20(1)(f), or from another source. *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to examine this property.)*

7. TAPES AND ELECTRONIC RECORDINGS

☐ If checked, there exist tapes or other electronic recordings which the People intend to introduce at trial, irrespective of whether such recording was made during the course of the criminal transaction. CPL §240.20(1)(g). *(Counsel should contact the assigned Assistant District Attorney to arrange a mutually convenient time to listen to the tapes or provide a blank tape for copying.)*

8. BRADY MATERIAL

☐ If checked, there is material appended which the People are required to turn over pursuant to the United States or the New York State Constitution. The People are aware of their continuing obligation to disclose material exculpatory information to defendant and intend to satisfy that obligation as required by law. CPL §240.20(1)(h).

9. COMPUTER OFFENSES

☐ If checked, discovery is hereby served pursuant to CPL §240.20(1)(i) of the time, place and manner of notice given pursuant to Penal Law §156.00(6), which governs offenses for Unauthorized Use of a Computer (Penal Law §156.05) and Computer Trespass (Penal Law §156.10).

10. VEHICLE AND TRAFFIC LAW OFFENSES

☐ If checked, the People hereby disclose written reports or documents or portions thereof, concerning a physical examination, a scientific test or experiment, including the most recent record of inspection, or calibration or repair of machines or instruments utilized to perform such scientific tests or experiments and the certification certificate, if any, held by the operator of the machine or instrument, which tests or examinations were made by or at the request or direction of a public servant engaged in law enforcement activity, or which was made by a person whom the People intend to call as a witness at trial, or which the People intend to introduce at trial. CPL §240.20(1)(k).

11. POLICE OFFICERS INVOLVED

The following are some of the officers who were involved in the arrest or police investigation.

<u>Name</u>	<u>Shield</u>	<u>Command</u>
P.O. Andrew Nash	11510	32nd Precinct
P.O. Ryan Loomis	11460	32nd Precinct

12. SEARCH WARRANTS

☐ If checked, a search warrant was executed during the investigation of this case.

D. DEMAND FOR NOTICE OF ALIBI

Pursuant to CPL §250.20, the People hereby demand that defendant supply the District Attorney with (a) the place or places where the defendant claims to have been at the time of the commission of the crime(s) and (b) the names, residential addresses, places of employment and addresses thereof of every alibi witness upon whom defendant intends to rely to establish his presence elsewhere than at the scene of the crime at the time of its commission, and of every witness in support of such defense. Within a reasonable time after the receipt of the information specified above, the District Attorney will submit a list of any rebuttal witnesses, their addresses, and employers.

Fax Ser. er

9/5/2014 10:32:23

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

THE PEOPLE OF THE STATE OF NEW YORK

vs. against

Keenan Lewis (M 24),

Defendant.

MISDEMEANOR

searched the New York Department of Motor Vehicles Database and determined that a) the defendant has only been issued an Identification Card does not have a valid driver's license; b) the defendant's privilege to operate a motor vehicle is presently suspended with no scoffs on two dates (2 or 2); and c) there is a licensed driver named Chaz Bobo, with an address of 111 West 147th Street, New York, and a date of birth of July 31, 1988.

know that the defendant knew his privilege of obtaining a license and/or operating a motor vehicle was suspended because the computer check revealed that his privilege of operating a motor vehicle was suspended for failure to answer a New York summons and all such summonses have printed on them, "If you do not answer this ticket by mail within fifteen days your license will be suspended." The suspension occurs automatically (by computer) within four weeks of the defendant's failure to answer.

all statements made in this written instrument are punishable as a class A misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes.

Andrew Nas

Police Officer Andrew Nas

9/5/14 2235

Date

Time

2637425

EXHIBIT (D) :

NO 9345-2014

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

IN THE MATTER OF AN APPLICATION FOR A

WARRANT TO SEARCH

(i) A 2011 BLACK BMW 5 SERIES, LICENSE PLATE # GRU8887,
CURRENTLY IN THE CUSTODY OF THE NEW YORK POLICE
DEPARTMENT ("THE TARGET VEHICLE") and

(ii) A GRAY IPHONE, MODEL #A1429 AND A BLACK
SAMSUNG GALAXY S 2 CELLULAR TELEPHONE, BOTH HELD
UNDER VOUCHER 1000547834 ("THE TARGET CELLULAR
TELEPHONES")

AFFIDAVIT IN SUPPORT OF
SEARCH WARRANT

Police Officer Quincy Smith Shield # 21133, of the 32nd Detective Squad of the New York City Police Department ("NYPD"), being duly sworn, deposes and says:

1. I am a Police Officer assigned to the 32nd Detective Squad and as such I am a public servant of the kind specified in CPL 690.05(1). I have been a member of the New York City Police Department for over nine years. I have made over four hundred arrests and have assisted in the execution of at least five search warrants.

2. This affidavit is submitted in support of an application for a warrant to search a 2011 Black BMW 5 Series, License Plate # GRU8887 ("the target vehicle") and a Gray Iphone, Model #A1429 and a Black Samsung Galaxy S 2 Cellular telephone, both held under voucher 1000547834 ("the target cellular telephones"), where there is reasonable cause to believe that evidence of the commission of the crimes of Criminal Possession of a Weapon in the Second Degree, Penal Law § 265.03, Attempted Murder in the Second Degree, Penal Law §§ 110/125.25(1), may be found in the form of the following property:

- a. Projectiles, spent bullets, shell casings discharged from firearms or any other evidence demonstrating that a firearm was discharged in proximity to the target vehicle
- b. Blood stains or other bodily tissue

- c. Blood stained clothing
- d. EZ Passes
- e. Any electronic devices which store GPS information or other information regarding the use of the target vehicle
- f. any and all cellular telephones, cameras, video-recorders, other electronic devices and/or equipment capable of storing data, information and images, and their components and accessories, including, but not limited to, wires, cords, monitors, software, hard drives and chargers;
- g. any and all books, manuals, guides or other documents containing information about the operation and ownership of a cellular telephone, camera, video recorder, or other electronic storage device present in the target vehicle, including, but not limited to, computer, cellular telephone and software user manuals;
- h. evidence of ownership and use of the target vehicle and the target cellular telephones, or the use of property located therein by any person, including but not limited to keys, telephone bills, utility bills, bank statements, leases, deeds, or rent receipts related to the target premises or other real property, mail addressed to or from the target premises or other documents bearing the address of the target premises, identification bearing the name or photograph of any person, telephone-books, address books, date books, calendars, personal papers, driver's licenses, vehicle registration, vehicle insurance documents, vehicle repair documents, tooth and hair brushes, videotapes and photographs of persons, fingerprints, handprints, footprints, shoe impressions, hairs and fibers, swabs and/or samples of DNA and other forensic and trace evidence;

3. With respect to the seizure and search of electronic storage devices, cellular telephones, cameras, video recorders and other electronic devices and/or equipment capable of storing the above described property in addition to searching for the items described above in Paragraph 2, that authorization be granted to search these devices for:

- a. Evidence of communications relating to a shooting which occurred on August 29, 2014 including text messages, photographs, emails or any other form of communication
- b. any and all data, information, or images evidencing internet usage history for the time period from August 27, 2014 through September 6, 2014;
- c. any and all data, information, or images which evidence ownership and use of the device, including, but not limited to, calendar entries, email account addresses, stored telephone numbers and names, nicknames, and/or labels assigned to said numbers, photographs, videos, bank account documents, bills and invoices, recorded voice memos, text messages, instant messenger messages and letters and voice mails stored on any seized device;
- d. any and all data, information, or images evidencing passwords which may be used to

unlock or decrypt data, information or images stored on the device, which may or may not be stored in a locked or encrypted fashion, whether said passwords are letters, numbers, characters, words, or data strings(sequence of characters);

e. Evidence of communication made immediately before or after the shooting which occurred on August 29, 2014 at approximately 4:30pm including phone records and cellular telephone number assigned to the target devices

f. the identify of all individuals who either sent a received a communication to the target cellular telephones from August 29, 2014 to the present

4. It is also requested for evidentiary purposes that this Court grant authorization for law enforcement personnel to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

5. With respect to the stored electronic data, information and images contained in computers and other electronic devices described above and/or their components and accessories, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

6. As set forth below, there is reasonable cause to believe the above described property constitutes evidence, tends to demonstrate that an offense was committed and that a particular person participated in the commission of said offense.

7. I am informed by Keenan Lewis that on August 29, 2014 at approximately 4:30pm, informant heard gunshots and immediately noticed he had been shot in his arm and in his back. Mr. Lewis then proceeded to Harlem Hospital where he received treatment for the gunshot wounds. I began investigating the above described shooting. Accordingly, I proceeded to the vicinity of the reported shooting. In the vicinity of 138 West 137th Street, I observed a shell casing which had been discharged from a 380 caliber firearm. I also observed a trail of blood in the vicinity of 137th Street and 7th Avenue. I obtained surveillance video from 175 West 137th Street. At approximately 4:43pm on August 29, 2014, individuals pictured in the video seem to react to the sound of gun fire in that the individuals pictured on the video all crouch down, look and subsequently move away from the location which I determined to be the location of the shooting. A moment after the individuals react to the sound of gun fire, I observed what appears to be a Black BMW driving westbound on 137th Street.

I am informed by Police Officer Nash that on September 5, 2014, Officer Nash observed a 2011 Black BMW 5 Series, License Plate # GRU8887, to wit, the target vehicle, driving on 142nd Street. Since the vehicle had an improperly displayed license plate, Officer Nash pulled the vehicle over. The vehicle was operated by Keenan Lewis, the same individual mentioned and described above. Officer Nash then determined that Mr. Lewis' license was suspended and accordingly placed him under arrest.

Officer Nash then took the target vehicle into police custody. During arrest processing, Officer Nash recovered a Gray Iphone, Model #A1429 and a black Samsung Galaxy cellular telephone, to wit, the target cellular telephone. Both those phones were vouchered under invoice number

1000547834.

After the target vehicle was taken into police custody, I observed a blood stain on the driver seat, a bullet hole in the front driver side door covered by black electrical tape and another bullet hole on the rear driver side door. The bullet hole in the rear driver side door was covered by a silver sticker. Based upon my observations of the target vehicle and my review of the surveillance video, the target vehicle appears to be the same vehicle I observed on the above described surveillance video moments after the shooting. Thus, based upon my review of the surveillance video, the blood stain in the car, the apparent bullet holes in the vehicle as well as other forensic evidence, I believe Mr. Lewis was actually inside of the vehicle when he was shot.

Further, I interviewed Mr. Lewis on August 29, 2014 while he was inside of Harlem Hospital receiving medical treatment. Although Mr. Lewis stated that he is unable to identify the perpetrator of the shooting, I believe based upon my own investigation and experience as a police officer that the identity of the shooter is actually known to Mr. Lewis. First, Mr. Lewis gave inconsistent accounts as to the circumstances immediately leading up to and following the shooting. Mr. Lewis informed me that he was walking southbound when he was shot but previously informed Officer Christopher Wintermute that he was walking northbound. Further, Mr. Lewis informed Officer Christopher Wintermute that he walked to Harlem Hospital but then informed me that he took a cab to the hospital. Finally, based upon my own experience as a police officer, victims are sometimes unwilling to identify perpetrators known to them because of a fear of retaliation. Thus, based upon my own experience, Mr. Lewis likely revealed more information regarding the shooting to individuals he spoke with after the incident occurred. A search of the cellular telephones recovered from Mr. Lewis, as well as any additional communication devices present in the target vehicle, will reveal the identity of those individuals and may reveal the identity of the actual shooter. Further, I believe that a search of the phones will reveal information as described above since Mr. Lewis was in possession of at least one cellular telephone during and immediately after the shooting. I believe that Mr. Lewis was in possession of at least one cellular telephone since I spoke to an individual via telephone, Jaime Walker, who identified herself as Mr. Lewis' girlfriend. Ms. Walker informed me that Mr. Lewis called her and informed her that he was shot. Immediately after telling me that Mr. Lewis had called her and informed her of the shooting, Ms. Walker hung up the phone. However, Mr. Lewis denied being in possession of any cellular telephones during the time of the shooting, or immediately after.

8. As indicated above, I am seeking to seize and remove from the target vehicle any computers as defined in Penal Law Section 156.00(1), as well as cellular telephones, cameras, video-recorders, and other electronic devices capable of storing data, information and images.

a) Because such devices are readily capable of storing data, information and images, it is reasonable to believe that any such devices located in the target premises may contain evidence of the crimes under investigation and sought by this warrant application. Neither I, nor my fellow officers assigned to my unit, have the training and expertise in forensic computer analysis to conduct a thorough and complete forensic search of computers, cellular telephones and/or other electronic storage devices located in the target premises. I am therefore requesting that the Court authorize the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me in accessing, downloading, retrieving, printing, copying or otherwise seizing the computerized and electronic evidence

After the shooting at the Hospital was Mr. Lewis clothing taken as evidence. And sneakers?? So no cell phone was taken b/c it was not one on the scene. Therefore no need to take phones with lake!

described above from any devices seized in the target location.

b) Attached hereto and incorporated by reference in my application is a sworn affidavit by a member of the New York County District Attorney's Office's Cybercrime and Identity Theft Bureau.

WHEREFORE, deponent respectfully requests that the court issue a warrant and order of seizure in the form annexed authorizing a search of the target vehicle and the target cellular telephones, for the above described property; and directing that if such property is found, it be brought before the Court.

Authorization is also requested to videotape and photograph the interior of the target vehicle; to process the target vehicle for fingerprints; to analyze, test, and in any way scientifically process the target vehicle and all items seized.

It is also requested that the Court authorize the seizure of computers, cellular telephones, and/or other electronic storage devices as described above for the purpose of conducting an off-site search for the evidence described. In addition, it is also requested that this Court grant permission to retrieve the above-described data, information, and images, and print them or otherwise reproduce them by converting them or copying them into storage in another device.

It is also requested that the Court authorize that, for purposes of the requirement that a search warrant be executed within ten days as mandated by C.P.L. Section 690.30(1), that with respect to any computers, cellular telephones, and other electronic storage devices, the warrant be deemed executed at the time that said devices are seized and removed from the target premises, and that the search of said devices may continue thereafter for whatever reasonable time is necessary to complete a thorough search pursuant to this warrant. Once said computers and other devices are seized pursuant to the warrant, the data, information and images contained therein will not change, and thus no greater intrusion will result from a thorough search being conducted within a reasonable time.

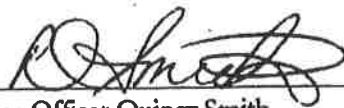
It is also requested that the Court authorize a search of all files and data stored in computers, cellular telephones, and other electronic storage devices, irrespective of how the data is filed, labeled, designated, encrypted, hidden, disguised or otherwise stored.

It is also requested that the Court authorize forensic computer analysts assigned to the New York County District Attorney's Office Cyber Crime and Identity Theft Unit and/or the New York City Police Department Computer Crimes Squad to assist me, as deemed necessary by law enforcement officials, in accessing, downloading, retrieving, printing, copying and otherwise seizing the computerized information and electronic evidence described above from any devices seized in the target location.

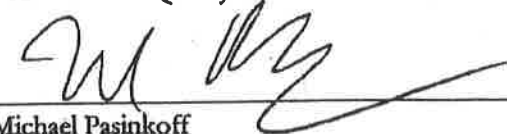
It is requested that this affidavit and any transcript of any accompanying sworn testimony in support of this application be sealed, except that permission be granted for an assistant district attorney in the New York County District Attorney's Office to obtain a copy of any such sworn

testimony and that permission be granted for an assistant district attorney in the New York County District Attorney's office to disclose the affidavit and/or accompanying sworn testimony in the course of the lawful discharge of his or her duties pursuant to a criminal investigation and/or prosecution, or upon written order of the Court.

No previous application has been made in this matter to any other Judge, Justice, or Magistrate.



Police Officer Quincy Smith



Michael Pasinkoff

APPROVED: Assistant District Attorney

Sworn to before me this
September 6, 2014

 **HON. LAURIE PETERSON**

Judge

PART AR3
HON L. PETERSON
CT RPT B. OZEREMIA
09-06-14

Name of Court Reporter